

PART IV.

LOANS BY THE FISHERY BOARD FOR SCOTLAND.

LOANS UNDER THE CROFTERS HOLDINGS (SCOTLAND) ACT, 1886
(49 & 50 VICT. c. 29).

Names and Addresses of Borrowers.	Fishery District.	Amount of Loan.	Amount to be Written off.
Norman Cunningham, John Cunningham, and Neil Cunningham, all of Scalpay, Tarbert, Harris.	Stornoway -	£ 30	£ s. d. 14 16 1
Murdo Mackay, William Mackenzie, Angus Macdonald, Malcolm Murray, and Torquil Macdonald, all of Sulishader; and Murdo McSween, Garrabost, Stornoway.	Stornoway -	234	17 5 11

CHAPTER 23.

An Act to amend the Law with respect to Customs Duties in the Isle of Man. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The additional duties of Customs on tobacco, tea and spirits removed or imported into the Isle of Man, imposed by section one of the Isle of Man (Customs) Act, 1900, and the additional duty on ale and beer removed or imported into the Isle of Man, imposed by the second paragraph of section two of that Act, shall continue to be charged, levied and paid as from the first day of August one thousand nine hundred and two until the first day of August one thousand nine hundred and three.

Continuation of additional duties on tobacco, tea, spirits, ale and beer. 63 & 64 Vict. c. 31.

2. This Act may be cited as the Isle of Man (Customs) Act, 1902.

CHAPTER 24.

An Act to facilitate the execution and maintenance of Marine Works in Ireland, and for other like purposes.

[8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Certified
works, and
execution
thereof.

1.—(1) Where it is certified to the Treasury by the Lord Lieutenant that the construction, re-construction, repair or improvement under this Act of a marine work, or the appurtenances thereof, or any approaches thereto, or any part of the same respectively, is necessary for the development of any industry or trade carried on by the inhabitants of a congested districts county, and that, owing to exceptional circumstances, the work cannot be executed without special assistance from the State, the Treasury may make advances by way of grant to the Board of Works, to be applied by them in the execution and equipment of the certified work: Provided that the Treasury shall not make any such advance unless—

- (a) they are satisfied that the Congested Districts Board, the Department of Agriculture and local authorities have, by the free grant of land, or by agreeing to make and maintain ancillary works, or otherwise, and that persons locally interested have, in such manner as aforesaid or by pecuniary contributions given all reasonable assistance and facilities in their power towards the objects of the work; and
- (b) the council of the county or, if more than one, of each county, appearing to the Lord Lieutenant to be interested in the work, have agreed to pay such an annual sum as is herein-after mentioned (in this Act referred to as "the county contribution").

(2) The Board of Works may make, or procure to be made, any surveys, maps, plans, and estimates necessary for the execution of the certified work, and the costs and expenses of and incidental to the making thereof shall be defrayed out of the advances to be made under this Act.

(3) For the purposes of this section, the Board of Works shall have all the powers conferred by the Lands Clauses Acts upon the promoters of an undertaking: Provided that, for the said purposes, the award of the arbitrator under those Acts shall be final, and the provisions of those Acts with respect to traverses shall not apply.

(4) The Board of Works may execute the certified work, or, with the approval of the Treasury, enter into an agreement or contract with any county or district council, or any public department or person, for the execution thereof or any part thereof, or any work ancillary thereto.

Amount of
county contri-
bution.

- 2. Subject to the provisions of this section, the county contribution in respect of a certified work shall, where one county only is interested in the work, be such an annual sum as the Lord Lieutenant may fix, being not less than one-and-a-half per cent. of the total cost of the work, and shall, where more than one county is so interested, be such proportionate part of the said annual sum as the Lord Lieutenant, having regard to the prospective benefit to the inhabitants of the county from the work, may fix:

Provided that, if there is at any time standing to the credit of the general maintenance fund herein-after mentioned a sum of not less than six thousand pounds, the Lord Lieutenant may reduce the county contributions in respect of all certified works by a uniform

per-centage; but the reduction shall be so calculated that the contributions, as and when reduced, shall be sufficient for the purpose of defraying the expenses and charges payable out of the general maintenance fund.

Provided nevertheless that if, at any time after such reduction as aforesaid has been made, the general maintenance fund is, in the opinion of the Lord Lieutenant, insufficient for the said purpose, he may in like manner increase the said contributions; but the amount of any contribution shall not exceed the amount originally fixed by him.

3.—(1) The county contribution, in the case of a county borough, shall be payable out of the borough fund of borough rate, and, in the case of any other county, shall be payable out of the county fund, and may be raised equally by means of the poor rate, either over the whole county, or over the whole of any county district or districts comprised in the county, according as the county council, with the approval of the Lord Lieutenant, may determine.

Provisions with respect to payment of county contributions.

(2) The Lord Lieutenant may make an order for the payment of any sum due by a county council to the Board of Works in respect of a county contribution, and, upon such order being made, section eighty of the Local Government (Ireland) Act, 1898, relating to imperative presentments, shall apply to that sum.

61 & 62 Vict. c. 37.

4. All certified works shall be vested in the Board of Works, and, for the purposes of this section, that Board shall establish a general maintenance fund, and shall carry thereto all county contributions, and, subject as aforesaid, the expenses of the inspection, maintenance and repair of the certified works, and the salaries or remuneration of any harbour constables or collectors of tolls and rates, appointed for the purposes of the certified works, shall be defrayed by that Board out of the said fund, and, in case and so far as that fund is insufficient, out of moneys provided by Parliament: Provided that the Board of Works may, with the sanction of the Treasury, lease the work or the revenue thereof to any county or district council, or public department or person, for such term and subject to such conditions as the Treasury may sanction.

General maintenance fund.

5. A certified work, or any work ancillary thereto, shall not for a period of ten years from the completion of the work, be assessed to any local rate at a higher value than that at which the land occupied by the work would have been assessed if it had remained in the condition in which it was immediately before it was acquired for the purposes of the work.

Freedom from increased assessments to local rates.

6.—(1) The Chief Secretary may, with the approval of the Treasury, fix the tolls and rates to be paid by vessels using any certified work, and on all or any live stock, fish, goods or articles landed or shipped at any certified work, and, for the purpose of enforcing payment thereof, section thirteen of the Public Works (Ireland) Act, 1836 (which provides for the appointment of collectors and enforcing payment of tolls), is incorporated with this Act.

Tolls, rates and rent.

6 & 7 Will. 4 c. 108.

(2) The tolls and rates payable in respect of a certified work and received by the Board of Works shall be paid or credited by them to the council of the county interested in the work, or, where more than one county is so interested, to the councils of the interested counties respectively, in the same proportions as the respective county contributions of those councils in respect of the work :

Provided that, if in any year the total amount of tolls and rates received by the Board of Works in respect of the work exceeds the total amount of the said county contribution or contributions, the balance shall be carried to the general maintenance fund under this Act.

(3) The last preceding subsection shall apply, with such modifications as the Treasury may in each case sanction, to any rent reserved by a lease of a certified work, or the revenue thereof, in like manner as it applies to the said tolls and rates.

Byelaws.
9 Vict. c. 3.

7.—(1) Sections seventy and seventy-one of the Fisheries (Ireland) Act, 1846 (relating to byelaws), are incorporated with this Act, but all byelaws made thereunder relating to any certified work shall be subject to the approval of the Lord Lieutenant.

(2) The limits within which the Board of Works shall have power to make such byelaws, and which shall be deemed to be the limit to which their jurisdiction extends for all purposes (including the power to levy tolls and rates) connected with a certified work, shall comprise the work and the appurtenances thereof and an area below high-water mark within a distance of two hundred yards from the seaward extremities of the work in every direction.

Harbour
constable.
16 & 17 Vict.
c. 136.

8. The Board of Works may appoint a harbour constable for any certified work for the purposes specified in section nine of the Grand Jury (Ireland) Act, 1853, at such salary as the Treasury may sanction, and such harbour constable shall have all the powers conferred on a harbour constable by that section.

Provision of
money for
purposes of
Act.
59 & 60 Vict.
c. 34.

9.—(1) Any money raised under section four of the Railways (Ireland) Act, 1896, may be applied for the purposes of advances under this Act, and the limit of five hundred thousand pounds under that section on the total amount advanced shall be increased to six hundred thousand pounds.

(2) Any money received by the Board of Works in respect of any means of communication assisted by them in pursuance of section nine of the Railways (Ireland) Act, 1896, and not applicable for the purposes of that Act, shall be applied by them for the purposes for which advances under this Act are applicable.

Provision with
respect to
harbour of
Liscannor.

10. The Lord Lieutenant may, with the consent of the Treasury, declare that the reconstruction, repair or improvement of the harbour of Liscannor, in the county of Clare, shall be regarded as a certified work under this Act, notwithstanding that the work may not be necessary for the development of any trade or industry carried on by the inhabitants of a congested districts county, and

thereupon the foregoing provisions of this Act shall apply to that work, with the following modifications:—

- (1) The advance to be made by the Treasury shall not exceed two-thirds of the cost of the execution and equipment of the work;
- (2) The balance of that cost shall be defrayed by the Department of Agriculture and by persons locally interested, in such proportions as may be agreed upon; and
- (3) Any reference in this Act to the Congested Districts Board shall not apply.

11.—(1) Where any marine work has become the public property of a county, in pursuance of section seven of the Grand Jury (Ireland) Act, 1853, the council of the county and the Board of Works may agree that the work shall become vested in the Board of Works, and shall be inspected, maintained and kept in repair by that Board out of the general maintenance fund under this Act, and such agreement shall have effect accordingly; and the provisions of this Act relating to certified works vested in that Board shall thereupon apply to the said work.

Provision with respect to marine works being the public property of counties. 16 & 17 Vict. c. 136.

(2) An agreement under this section shall contain a covenant for the payment to the Board of Works by the county council of such an annual sum as the Lord Lieutenant may certify to be properly payable by the council as a county contribution in respect of the work, and the provisions of this Act relating to county contributions shall apply to that sum.

12. In this Act—

Definitions.

The expression “marine work” includes any physical construction or operation required for, or connected with, the purposes of navigation;

The expression “the Board of Works” means the Commissioners of Public Works in Ireland;

The expression “the Department of Agriculture” means the Department of Agriculture and Technical Instruction for Ireland; and

The expressions “the Congested Districts Board” and “congested districts county” have the same meanings as in the Purchase of Land (Ireland) Act, 1891.

54 & 55 Vict. c. 48.

13. This Act may be cited as the Marine Works (Ireland) Act 1902.

Short title.

CHAPTER 25.

An Act to amend the Lands Valuation (Scotland) Acts in regard to the Law relating to the Rating of Machinery. [8th August 1902.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows: